

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF QUEENS

----- X

DENNIS KONSTANTOPOULOS,

Plaintiff,

-against-

THE CITY OF NEW YORK; NYPD P.O. HAMID, TAX ID  
940232; NYPD P.O. JOHN/JANE DOES # 1-10; all  
of the above individual defendants, including  
named are sued in their individual and  
official capacities,

Defendants.

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YOU ARE HEREBY SUMMONED to appear and to answer the Complaint in this  
action and to serve a copy of your answer on plaintiff's attorney  
within twenty (20) days of the service of this Summons, exclusive of  
the day of service (or within thirty (30) days after service is  
complete if this Summons is not personally delivered to you within the  
State of New York), and in case of your failure to appear or to  
answer, judgment will be taken against you by default for the relief  
demanded in the Complaint.

DATED: NEW YORK, NY  
APRIL 16, 2017



MARTIN E. ADAMS, ESQ.  
ADAMS & COMMISSIONING LLP  
*Attorney for Plaintiffs*  
65 Broadway 715  
New York, New York 10006  
212-430-6590

DEFENDANTS ADDRESS:

The City of New York  
100 Church Street  
New York, NY 10007

NYPD P.O. HAMID, TAX ID 940232;  
NYPD P.O. JOHN/JANE DOES # 1-10  
109th Precinct  
37-05 Union St  
Flushing, NY 11354

**SUMMONS:**

**Index No:** \_\_\_\_\_

**Date Filed:** \_\_\_\_\_

**Basis of Venue:** Location of  
incident: Queens County

**Jury Trial Demanded**

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF QUEENS

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DENNIS KONSTANTOPOULOS,

Plaintiff,

**COMPLAINT**

-against-

THE CITY OF NEW YORK; NYPD P.O. HAMID, TAX ID  
NO 940232; NYPD P.O. JOHN/JANE DOES # 1-10;  
all of the above individual defendants,  
including named are sued in their individual  
and official capacities,

Defendants.

**Index No:** \_\_\_\_\_

**Basis of Venue:**

Location of incident:  
Queens County

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The Plaintiff, DENNIS KONSTANTOPOULOS, by and through  
counsel Adams & Commissiong LLP, alleges upon information and  
belief as follows:

**PRELIMINARY STATEMENT**

1. This is a civil rights, common law, and tort  
action in which plaintiff seeks relief for the violation of his  
rights secured by the laws of the State of New York; New York  
State Constitution; 42 U.S.C. §§ 1983 and 1988; and the Fourth,  
Sixth, and Fourteenth Amendments to the United States  
Constitution. Plaintiff's claims arise from an incident that  
arose on or about November 11, 2014. During the incident, the  
City of New York, and members of the New York City Police  
Department ("NYPD") subjected plaintiff to, among other things,  
unlawful search and seizure, false arrest and imprisonment,  
malicious prosecution, failure to intervene, and implementation

and continuation of an unlawful municipal policy, practice, and custom. Plaintiff seeks compensatory and punitive damages from the individual defendants, compensatory damages from the municipal defendant, declaratory relief, an award of costs and attorney's fees, and such other and further relief as the Court deems just and proper.

#### **JURISDICTION & VENUE**

2. This action is brought pursuant to 42 U.S.C. § 1983, and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.

3. Jurisdiction and Venue are proper here because the acts in question occurred in Queens County, New York.

#### **PARTIES**

4. Plaintiff DENNIS KONSTANTOPOULOS is a resident of the State of New York, Queens County.

5. At all times alleged herein, defendant City of New York was a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.

6. At all times alleged herein, defendants NYPD P.O. HAMID, TAX ID NO 940232, and P.O. John or Jane Does # 1-10 were New York City Police Officers employed with the 109th Precinct, located in QUEENS County, New York or other as yet unknown NYPD assignment, who violated plaintiff's rights as described herein.

7. The individual defendants are sued in their individual and official capacities.

**STATEMENT OF FACTS**

8. On November 11, 2014, at and in the vicinity of Northern Boulevard and Main Street, Queens, New York, several police officers operating from the 109th Precinct, including upon information and belief, NYPD P.O. HAMID, TAX ID NO 940232; and P.O. John or Jane Does # 1-10, at times acting in concert, and at times acting independently, committed the following illegal acts against plaintiff.

9. On November 11, 2014, at approximately 10:00 p.m., at and in the vicinity of Northern Boulevard and Main Street, Queens, New York, defendants, without either consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that plaintiff had committed a crime unlawfully arrested plaintiff.

10. Plaintiff was eating at a restaurant, when two defendant police officers in plain clothes including officer HAMID, TAX ID NO 940232 approached plaintiff.

11. The officers placed excessively tight handcuffs on plaintiff.

12. Upon information and belief, the defendant officers subjected plaintiff to a highly suggestive illegal

identification procedure to frame him for a crime he did not commit.

13. Plaintiff was taken to the 109th precinct and then to Queens Central Booking, where his arrest was processed.

14. During this time, in order to cover up their illegal actions, the defendant officers, pursuant to a conspiracy, falsely and maliciously told the Queens County District Attorney's Office that plaintiff had committed various crimes.

15. The defendants made these false allegations, despite the fact that they had no evidence that plaintiff had committed a crime, to cover up their misconduct, to meet productivity goals and quotas, and to justify overtime expenditures.

16. However, because there was no basis to arrest plaintiff, much less prosecute plaintiff, the case was dismissed.

17. The individual defendants acted in concert committing the above-described illegal acts toward plaintiff.

18. Plaintiff did not violate any law, regulation, or administrative code; commit any criminal act; or act in a suspicious or unlawful manner prior to or during the above incidents.

19. At no time prior to, during or after the above incidents were the individual defendants provided with information, or in receipt of a credible or an objectively reasonable complaint from a third person, that plaintiff had violated any law, regulation, or administrative code; committed any criminal act; or acted in a suspicious or unlawful manner prior to or during the above incidents.

20. The defendants acted under pretense and color of state law and within the scope of their employment. Said acts by said defendants were beyond the scope of their jurisdiction, without authority or law, and in abuse of their powers, and said defendants acted willfully, knowingly, and with the specific intent to deprive plaintiff of his rights.

21. As a direct and proximate result of defendants' actions, plaintiff experienced personal and physical injuries, pain and suffering, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, humiliation, and financial loss.

22. Plaintiff is entitled to receive punitive damages from the individual defendants because the individual defendants' actions were motivated by extreme recklessness and indifference to plaintiff's rights.

23. Upon information and belief, the unlawful actions against plaintiff were also based on profiling.

**FIRST CLAIM****(UNLAWFUL SEARCH AND SEIZURE UNDER FEDERAL LAW)**

24. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

25. Defendants unlawfully searched plaintiff without cause, a warrant, or consent.

26. Accordingly, defendants are liable to plaintiff for unlawful search and seizure under 42 U.S.C. § 1983; and the Fourth and Fifth Amendments to the United States Constitution.

**SECOND CLAIM****(FALSE ARREST UNDER FEDERAL LAW)**

27. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein

28. Defendants falsely arrested plaintiff without consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that plaintiff had committed a crime.

29. Accordingly, defendants are liable to plaintiff for false arrest under 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

30. Those defendants who did not touch plaintiff, witnessed these acts, but failed to intervene and protect plaintiff from this conduct.

31. Accordingly, the defendants are liable to plaintiff for using unreasonable and excessive force, pursuant to 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

**THIRD CLAIM**

**(FAILURE TO INTERVENE)**

32. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

33. Defendants had a reasonable opportunity to prevent the violations of plaintiff's constitutional rights, but they failed to intervene.

34. Accordingly, the defendants are liable to plaintiff for failing to intervene to prevent the violation of plaintiff's constitutional rights.

**FOURTH CLAIM**

**(EXCESSIVE FORCE)**

35. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

36. The individual defendants' use of force upon plaintiff was objectively unreasonable.

37. The individual defendant officers did not have an objective and/or reasonable basis to use any degree of force against plaintiff, since plaintiff was unarmed, compliant, and did not resist arrest.



38. Those defendants who did not touch plaintiff, witnessed these acts, but failed to intervene and protect plaintiff from this conduct.

39. Accordingly, the defendants are liable to plaintiff for using unreasonable and excessive force, pursuant to 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

**FIFTH CLAIM**

**(MALICIOUS PROSECUTION UNDER FEDERAL LAW)**

40. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

41. The individual defendants are liable to plaintiff for malicious prosecution because prior to any grand action, with intent, knowledge, and malice, the defendants initiated a malicious prosecution against plaintiff by drafting and signing a sworn criminal court complaint and police reports that provided false information to the court, alleging plaintiff had committed various crimes.

42. The individual defendants lacked probable cause to believe the above-stated malicious prosecution could succeed.

43. The individual defendants initiating the above-stated malicious prosecution to cover up their illegal and unconstitutional conduct.

44. The above-stated malicious prosecution caused a sufficient post-arraignment liberty restraint on plaintiff.

**SIXTH CLAIM**

**(MALICIOUS PROSECUTION CLAIM UNDER STATE LAW)**

45. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

46. The individual defendants are liable to plaintiff for malicious prosecution because, pursuant to a conspiracy and acting with malice, the defendants initiated a malicious prosecution(s) against plaintiff by knowingly, intentionally, and maliciously providing false statements in complaints and police reports to police officers, prosecutors and/or the court(s), which alleged plaintiff had committed various crimes.

47. The individual defendants lacked probable cause to believe the above-stated malicious prosecution(s) could succeed.

48. The individual defendants acted to cover up their illegal and unconstitutional conduct by initiating the above-stated malicious prosecution(s).

**SIXTH CLAIM**

**(MONELL CLAIM)**

49. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

50. Defendant City of New York, through a policy, practice and custom, directly caused the constitutional violations suffered by plaintiff.

51. Defendant City of New York through the NYPD and its officers, committed the following unconstitutional practices, customs and policies against plaintiff: (1) unlawfully stopping and searching innocent persons; (2) wrongfully arresting innocent persons in order to meet productivity goals; (3) wrongfully arresting individuals based on pretexts and profiling; (4) using unreasonable force on individuals; and (5) fabricating evidence against innocent persons.

52. Upon information and belief, defendant City of New York, at all relevant times, was aware that the defendants were unfit officers who have previously committed the acts alleged herein, have a propensity for unconstitutional conduct, or have been inadequately trained.

53. Nevertheless, defendant City of New York exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline, and monitor the individual defendants and improperly retained and utilized them. Moreover, upon information and belief, defendant City of New York failed to adequately investigate prior complaints filed against the individual defendants.

54. Further, defendant City of New York was aware prior to the incident that the individual defendants (in continuation of its illegal custom, practice and/or policy) would stop, arrest and prosecute innocent individuals, based on pretexts and false evidence.

55. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct involving the individual defendants, placing the defendant City of New York on notice of the individual defendants' propensity to violate the rights of individuals.

56. In addition to frequently violating the civil rights of countless residents of New York City, numerous members of the NYPD commit crimes. Officers have been arrested and convicted of such crimes as planting evidence on suspects, falsifying police reports, perjury, corruption, theft, selling narcotics, smuggling firearms, robbery, fixing tickets, driving under the influence of alcohol, vehicular homicide, assault and domestic violence. In fact, former NYPD Commissioner Bernard Kerik was convicted of corruption-related crimes in federal and state court and served time in federal prison. In 2011, Brooklyn South narcotics officer Jerry Bowens was convicted of murder and attempted murder in Supreme Court, Kings County, while under indictment for corruption and is presently serving a life

sentence. In 2011, Police Officer William Eiseman and his subordinate Police Officer Michael Carsey were convicted of felonies in Supreme Court, New York County, for lying under oath, filing false information to obtain search warrants and performing illegal searches of vehicles and apartments. In 2012, New York City Police Officer Michael Pena was convicted in Supreme Court, New York County, of raping and sexually assaulting a woman at gunpoint and is presently serving a sentence of 75 years to life.

57. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

58. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD were the moving force behind the constitutional violations suffered by plaintiff as alleged herein.

59. The City's failure to act resulted in the violation of plaintiff's constitutional rights as described herein.

**WHEREFORE**, plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;

- b. Punitive damages in an amount to be determined by a jury;
- c. Costs, interest and attorney's fees, pursuant to 42 U.S.C. § 1988; and
- d. Such other and further relief as this Court may deem just and proper, including injunctive and declaratory relief.

DATED: New York, New York  
APRIL 16, 2017

ADAMS & COMMISSIONG LLP,  
*Attorney for Plaintiff*  
65 Broadway Suite 715  
New York, New York 10006  
212-430-6590  
martin@amcmlaw.com  
By:



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MARTIN E. ADAMS, ESQ.

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF QUEENS

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DENNIS KONSTANTOPOULOS,

Plaintiff,

**VERIFICATION**

Index No: \_\_\_\_\_

Date Filed: \_\_\_\_\_

-against-

THE CITY OF NEW YORK; NYPD P.O. HAMID, TAX ID  
940232; NYPD P.O. JOHN/JANE DOES # 1-10; all  
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Defendants.

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STATE OF NEW YORK

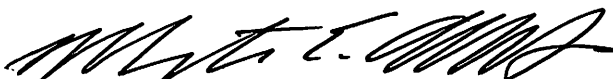
ss.:

COUNTY OF KINGS

I, DENNIS KONSTANTOPOULOS, being duly sworn, deposes and says: I am the  
plaintiff in the above-entitled action. I have read the annexed Complaint  
dated April 16, 2017 and know the contents thereof. The same is true to the  
best of my own knowledge, except as to matters therein stated to be alleged  
upon information and belief and as to those matters I believe them to be  
true.

  
DENNIS KONSTANTOPOULOS

Sworn to me before me on this  
16th day of April, 2017

  
\_\_\_\_\_  
Notary Public

MARTIN E. ADAMS  
NOTARY PUBLIC-STATE OF NEW YORK  
NO. 02AD6254317  
QUALIFIED IN QUEENS COUNTY  
MY COMMISSION EXPIRES 01-23-2020